

TAB 4



Board of Education Report

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File #: UIP-009-22/23, **Version:** 1

California School Employees Association and Its Los Angeles Chapter 500 (Unit D) Initial Bargaining Proposal for Successor (UIP-009-22/23)



California
School
Employees
Association

*The nation's largest
independent classified
employer association*

May 1, 2023
Anthony DiGrazia
Director
Office of Labor Relations
Los Angeles Unified School District
333 South Beaudry Avenue, 20th Floor
Los Angeles, CA 90017

RE: Initial Proposals from the California School Employees Association and its Los Angeles Chapter #500

Dear Mr. DiGrazia,

The mission of the California School Employees Association and its Los Angeles Chapter #500 ("CSEA") is "to improve the lives of our members, students and community." In pursuit of our mission, we write to notify you of our intent to negotiate the following topics. Please consider this CSEA's initial proposal per Government Code section 3547(a).

Wages

Inflation and the growing cost of housing, consumer goods, and services we all rely on have steadily eaten into the wages of Los Angeles Unified School District's ("District") classified employees. CSEA intends to seek a wage increase in line with those achieved by the District's other bargaining units.

Furthermore, CSEA represents the lowest paid classifications in the District. CSEA intends to seek an agreement that especially acknowledges the needs of these classifications. The District cannot boast about its minimum wage reaching \$22.52 an hour while some classifications are not on track to reach that number.

Article I – Recognition

CSEA intends to review the list of represented classifications and make updates as necessary. In addition, CSEA wants to review and update the language found in this article to ensure compliance with the law and eliminate waivers to CSEA's rights.

Article III – District Rights

CSEA intends to clarify or remove any language that conflicts with or minimizes our collective right to negotiate changes to our wages, hours, and working conditions.

Article IV – CSEA Rights

CSEA intends to add language in this article that accomplishes the following:

- Modification of the steward release time bank
- Modification of release time provisions for District committees, meetings, and events to ensure equity between CSEA officers and agents who work at the Central Office and those who work at schools
- Expansion of the negotiations team in line with the numbers of team members provided to other unions

- Automatic provision of routinely requested necessary and relevant information
- Preservation of our collective rights under the Educational Employment Relations Act (“EERA”)

Article V – Grievance Procedure

A contract is only as functional as it is enforceable. Accordingly, CSEA intends to expand and improve upon the existing grievance procedure by:

- Providing members additional time to investigate and process grievances
- Updating the arbitrator list or moving to an SMCS provided list or arbitrators
- Removing restrictions on CSEA communications
- Preserving our right to take collective action regarding grievances
- Equalizing the effect of time limits between the District, CSEA, and CSEA members
- Removing arbitrary limitations imposed upon the arbitrator

We also intend to review and remove language that waives our access to the grievance machinery throughout the contract, especially where such waivers do not serve the needs of our members.

Article VII – Discrimination

The District has repeatedly and loudly proclaimed its commitment to diversity, equity, and inclusion. However, CSEA members routinely face unacceptable discrimination. We intend to strengthen the language of Article VII and ensure that members have access to a full range of enforcement mechanisms and remedies when the District unlawfully discriminates.

In addition, CSEA has sounded the alarm regarding the District’s broken disability management and reasonable accommodations process. Once again, we intend to bring this issue to the negotiations table. The District’s commitment to diversity, equity, and inclusion is incomplete if it leaves behind disabled workers.

Article VIII – Union Security and Dues Deduction

CSEA intends to update Article VIII to comply with existing law and to reflect the numerous changes to the law post-Janus.

Article IX – Hours and Overtime

An equitable system for rotating extra straight time hours (“Z-time”) was supposed to be established in Spring 2019. CSEA intends to complete this unfinished work from 2019.

Furthermore, the process by which overtime is rotated needs to be strengthened to ensure said rotation is equitable across departments, divisions, and schools.

CSEA also intends to seek a ban of the practice of giving a worker a short-term schedule change simply to avoid paying overtime.

Article X – Evaluation Procedure

The evaluation procedure is one of the most referred to articles in the contract. CSEA intends to improve the existing article by:

- Clarifying the timeline for annual evaluations
- Banning the practice of retroactive evaluations long after the year in question has concluded
- Defining the evaluation timeline for school year vs. non-school year employees
- Requiring a record of communication before a supervisor can issue a below standard evaluation
- Adding new language that combats discriminatory evaluations

Article XI – Leaves of Absence

CSEA intends to review and update the leaves of absence language to comply with changes to the law. In addition, CSEA plans to fix weaknesses discovered in the bereavement leave section during the pandemic.

Article XII - Wages and Salaries, Pay Allowances, Differentials, and Special Salary Practices

CSEA is currently in negotiations with the District regarding this article as part of our 2022-2023 reopeners. If CSEA fails to achieve all of its goals in this article from those negotiations, CSEA will pursue them in successor bargaining.

Article XIII – Health and Welfare

CSEA seeks to expand the eligibility requirements found in this article.

Article XV – Professional Growth

CSEA intends to expand the professional growth opportunities that qualify for reimbursement under this article. In addition, CSEA wants to expand when flexible work hours, schedule changes, or even leaves are offered to an employee pursuing professional growth.

Article XVIII – Vacation:

CSEA is currently in negotiations with the District regarding this article as part of our 2022-2023 reopeners. However, if progress cannot be made on all CSEA's priorities in this article, CSEA intends to continue negotiations to improve the vacation benefit, reduce blackout periods, and reduce the amount of time employees must go unpaid due to a lack of vacation accrual.

Article XVII – Holidays

CSEA intends to add the new Juneteenth holiday to this article.

Article XIX – Safety Conditions

CSEA intends to memorialize a number of the parties' pandemic best practices in this article. CSEA also intends to memorialize recent changes to the law and regulations in this article.

Article XXI – Layoff and Reassignments

CSEA intends to ensure this article complies with recent changes to the law.

Article XXII - Term of Agreement

CSEA intends to negotiate a new three-year term.

Other Topics of Negotiation

The District has repeatedly relied upon central office deployments to make up for school site staffing shortages. CSEA intends to negotiate language that ensures deployments are not overused and that when they are necessary they are implemented safely and equitably.

The District relies on several floating positions that serve multiple schools. These positions have unique needs currently unaddressed by the parties' contract.

CSEA plans to address the gaps caused by the lack of assigned school nurses and district translators, which all too often falls on the shoulders of school office staff.

CSEA has advocated for fully staffed school libraries at every elementary and middle school for more than a decade. CSEA intends to address this issue at the bargaining table.

CSEA is currently bargaining over a reasonable telework policy as part of 2022-2023 reopeners. CSEA is keeping this subject on our successor proposal to give us the flexibility to continue negotiating over the matter if an agreement is not reached before June 30, 2023 or the agreement requires further adjustment after June 30, 2023.

CSEA intends to strengthen protections against contracting out work.

CSEA intends to explore other benefits to make the District the "employer of choice," such as reducing the number of unpaid/unassigned days or providing a benefit for dependent care.

Finally, CSEA reserves the right to make additional proposals during these negotiations subject to notice requirements in Government Code section 3547(d).

Sincerely,

CALIFORNIA SCHOOL EMPLOYEES ASSOCIATION AND ITS LOS ANGELES CHAPTER #500



Chapter President



CC: Espie Medellin, Field Director; Kennisha Green, Regional Representative; Don Snyder, Area Director; Jennifer Renner, Labor Relations Representative

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